

HOUSE No. 3540**The Commonwealth of Massachusetts**

PRESENTED BY:

Steven Owens

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act advancing clean energy equity.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>1/15/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/21/2025</i>
<i>Amy Mah Sangiolo</i>	<i>11th Middlesex</i>	<i>1/21/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>1/23/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/7/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/11/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>2/13/2025</i>
<i>Christopher Richard Flanagan</i>	<i>1st Barnstable</i>	<i>2/13/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>2/14/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>3/10/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>3/13/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>4/28/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>5/8/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>6/3/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>6/5/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>9/9/2025</i>
<i>John J. Lawn, Jr.</i>	<i>10th Middlesex</i>	<i>12/10/2025</i>

HOUSE No. 3540

By Representative Owens of Watertown, a petition (accompanied by bill, House, No. 3540) of Steven Owens and others relative to advancing clean energy equity. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act advancing clean energy equity.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 29 of chapter 21A of the General Laws, as amended by chapter 239
2 of the acts of 2024, is hereby amended by adding the following two paragraphs:

3
4 The undersecretary of environmental justice and equity shall have oversight of ensuring
5 an equitable allocation of the benefits of clean energy spending across the Commonwealth, and
6 that such allocation is proportional to the percentage of the population residing in (1)
7 environmental justice populations as defined in section 62 of chapter 30 or (2) any low-income
8 communities designated by the undersecretary for inclusion based on previously developed
9 criteria. The undersecretary, in consultation with a defined working group of environmental
10 justice stakeholders, shall set compliance goals and issue compliance reports on the same
11 schedule for emission limits required under section 4(g) of chapter 21N for delivery of clean
12 energy benefits to environmental justice communities.

13

14 The undersecretary shall consult with the environmental justice council as established
15 under section 62L of chapter 30 and any other stakeholders the undersecretary finds appropriate,
16 including additional representatives from environmental justice communities, local governments,
17 clean energy advocates, and public health experts, to develop, review, and update a definition of
18 clean energy benefits. This definition shall account for the net impact of burdens and shall also
19 include consideration of spending and benefits from state clean energy programs, pollution
20 reduction, transportation, economic development, and energy cost reduction. The undersecretary
21 shall be responsible for developing a framework for tracking and monitoring allocation of clean
22 energy benefits across the commonwealth. The undersecretary shall work with the secretary to
23 ensure alignment with these definitions and the framework for social benefits and burdens in
24 section 30. The undersecretary shall coordinate with any agencies overseeing clean energy
25 programs to incorporate these definitions and the framework into the program reviews which
26 they are directed to undertake to monitor and evaluate clean energy programs. All clean energy
27 program reviews beginning on January 1 of the year following the undersecretary's creation of
28 the definition and framework shall detail the amount and allocation of said benefits, and identify
29 any barriers to participation as well as any measures to reduce said barriers, including but not
30 limited to community organization partnerships, streamlined application processes, multilingual
31 options, and no-cost or low cost financing. The level of benefits shall be reviewed and updated
32 every 5 years beginning in 2025. The undersecretary may adopt regulations as deemed necessary
33 for implementation of this section and shall consult with the energy efficiency advisory council
34 as established under section 22 of chapter 25 and the grid modernization advisory council as
35 established under section 92C of chapter 164 to ensure alignment of the definition of benefits

36 and to develop comprehensive guidelines across all programs to address specific challenges for
37 rental properties including but not limited to protections against rent increases or other
38 detrimental impacts after clean energy resources are installed in the property.

39

40 SECTION 2. The first stakeholder group meeting required under section 1 shall occur not
41 later than January 1, 2026.